

3.3.3 Exports under a Single Transport Contract

In the case of certain indirect exports, which are undertaken under a Single Transport Contract (STC), a different procedure applies. STCs are a legislative exception to the normal procedures which apply to offices of export and offices of exit. STCs are binding agreements operated under several international instruments, depending on the mode of transport involved, relating to the international transport of goods. In an EU context, an STC is a contract for the through transport of goods from the point of export in the Union to their destination outside of the Union. Normally the existence of an STC will be shown on the air waybill or bill of lading. STC shall not apply in cases of excise goods falling under the category listed in Article 1(1) of Directive (EU) 2020/262 or non-Union goods (Article 329(7a) of the UCC IA refers).

Where goods that are being exported indirectly are moving under an STC they may be treated for customs purposes in the same way as a direct export, but only at the request of the declarant (Article 329(7) of the UCC IA refers). For example, if goods moving under a STC are declared in Dublin Airport, the declarant can refer to the Irish customs office of export as the customs office of exit in the customs declaration and present the transport contract as proof. All customs formalities can then be completed at the office of export although the goods subsequently leave the customs territory of the Union through another customs airport such as Frankfurt Airport.

In the case of indirect exports under STC, the required procedure is as follows:

- (a) The Irish customs office is both the office of export and the office of exit, and all the customs export formalities are to be carried out at that office.
- (b) The accompanying document is to be returned to the exporter as proof of departure of the goods from the Union.
- (c) On request at the actual point of exit from the Union the carrier shall make available one of the following:
 - (i) The movement reference number of the export declaration where available, or
 - (ii) a copy of the single transport contract or the export declaration for the goods concerned.
 - (iii) The unique consignment reference number or the transport document reference number and the number of packages and, if containerised, the equipment identification number.

Where goods are carried by an airline under the cover of a STC and part of the route is made by road, the condition laid down in Article 329(7) of the UCC IA with regards to leaving the Union by rail, post, air, or sea is considered to be fulfilled provided the external border is crossed by air.

In the case of exports by sea, where multi-modal transport is covered by a STC between an exporter and a shipping company, the condition of Article 329(7) of the UCC IA is considered to be fulfilled, provided the external border of the customs territory of the Union is crossed by sea. In this case, the decisive element for determining the office of exit for exports by sea is the way the external border is crossed:

- (a) By sea, the customs office of exit is, on request, the customs office competent for the place where the goods are taken over under a STC (commonly the Customs Office of Export).